STANDARD OPERATING PROCEDURE			P-4200	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **06/12/20**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES Carroll v. United States. 267 US 132 (1925) Maryland v. Buie, 494 U.S. 325 (1990)			
SUBJECT SEARCHES	CROSS REFERENCE P-3600 TOWING PROCEDURES P-3700 SUSPICIOUS PERSONS/FIELD INTERVIEW P-4700 ARRESTS/CITATIONS I-3200 SEARCH WARRANTS J-3600 ADMISSION/INTAKE J-3620 SEARCHES OF INMATES			

I. Purpose:

The purpose of this policy is to establish procedures for conducting all types of searches.

II. Policy:

All searches conducted by Sarpy County Sheriff's Office Road Patrol deputies shall be conducted in a legal manner. Searches shall be organized to be systematic and thorough.

III. Procedures:

A. Searches-Motor Vehicles:

1. **Inventory Search:** Inventory searches of all vehicles towed by the Sarpy County Sheriff's Office shall be done according to P-3600 Towing Procedures).

2. **Warrantless Vehicle Searches:** Motor vehicles, by nature of their mobility, may be searched without a warrant under certain circumstances (Carroll Doctrine).

   a) A deputy may conduct a search of a vehicle without a warrant if he or she has probable cause to believe the vehicle contains evidence of a crime or contraband. The mobility of the vehicle and likelihood that the vehicle's occupants will remove or destroy the evidence or contraband creates exigent circumstances that would make obtaining a search warrant impracticable.

   b) Any area or part of the vehicle capable of holding the item, to which probable cause pertains, may be searched.

B. **Searches-Buildings and Residences:** Generally, searches of businesses and homes shall only be conducted after acquiring a search warrant (see I-3200 Search Warrants); however, under certain circumstances a limited search may be conducted without a warrant:

1. **Plain View:** Any time a deputy is legally present and observes in plain view an item whose association with a crime is apparent, the deputy may seize that item without a warrant.

2. **Search Incident to an Arrest:** A deputy, after making a lawful arrest, may search the area within the immediate control of the arrestee. A search incident to a lawful arrest is permitted to:

a) Protect the arresting deputy and others.
b) Prevent an escape or suicide.
c) Seize contraband or the fruits, instruments, or evidence of a crime.
d) Prevent the destruction of evidence.

3. **Precautionary and Protective Sweeps:** (Buie doctrine).

a) **Precautionary Sweep:** Deputies, after making a lawful arrest, may, as a precautionary matter and without probable cause or reasonable suspicion, look in closets and other spaces immediately adjoining the place of arrest from which an attack could be immediately launched. Any items in plain view may be legally seized.

b) **Protective Sweep:** Deputies, legally inside a residence (i.e. invited inside by a reporting party or incident to a lawful arrest), may conduct a protective sweep of a residence when the deputies have articulable facts which, taken together with the rational inferences from those facts, would warrant a reasonably prudent officer in believing that the area to be swept harbors an individual posing a danger to those on the arrest scene. The sweep may extend only to a cursory inspection of those spaces where a person may be found. The sweep may last no longer than is necessary to dispel the reasonable suspicion of danger and in any event no longer than it takes to complete the investigation or arrest and depart the premises. Any items in plain view may be legally seized.

4. **Exigent Circumstances:** If a deputy has established probable cause to search a private residence, but, because of Exigent Circumstances, cannot reasonably take the time to obtain a search warrant, the search shall be legal.

a) Exigent circumstances include:

(1) Imminent destruction of material evidence.
(2) Imminent danger to life.
(3) Serious damage to property.
(4) Possible escape of the suspect.

b) Court review of a warrantless search based on exigent circumstances may include:

(1) The degree of urgency involved compared to the amount of time which would likely have been expended in obtaining a search warrant.
(2) The information used to determine that evidence would be removed or destroyed.
(3) The possible danger to deputies or others while guarding the location during the period required to obtain a search warrant.
(4) Any knowledge of efforts to destroy or remove contraband.

5. **Consent Search:** An individual may grant consent to search his or her person or property. This is a waiver of the Fourth Amendment right to be free from a search without a warrant.

a) The consent must be voluntary (freely given without duress or coercion).

b) The individual providing consent must have the authority to do so.

(1) If two persons have joint ownership of a place or item, either one may give valid consent (e.g. a spouse may consent to a search of a residence used jointly by both husband and wife), but if both are present, either person may deny consent even if the other person has provided consent to enter or search.

(2) If one individual exercises sole control over a portion of a building or over an item, only he or she may give consent for a search of that area or item (e.g. if a husband has sole control over a locked shop area in a home, only the husband may grant consent for a search of the shop).

c) The consent must be clear and explicit. Deputies are encouraged to have the consenting individual complete a Permission for Search and Seizure form, but this is not required.

d) **Revocation of Consent:** A valid consent to search may continue until all areas specified in the consent have been searched within a reasonable amount of time. Consent may be revoked; however, by the person who gave consent or by any other person who exercises control

over the property, at any time before the search is completed. If consent is revoked prior to the completion of the search, all evidence found prior to the revocation may be retained. The retained evidence may be used as probable cause for a search warrant or for an immediate arrest.

6. **Room Searches:** If possible, two deputies should search a room. The room should be divided in half with each deputy assigned a half to search. After the deputies have completed their assigned halves, they should exchange assignments and search the other half.

C. **Searches-Persons:**

1. **Stop and Frisk:** see P-3700 Suspicious Persons/Field Interview.
2. **Custodial Search:** see P-4700 Arrests/Citations.
3. **Inventory Search:** see J-3600 Admission/Intake.
4. **Strip Search:** see J-3620 Searches of Inmates.
5. **Body Cavity Search:** see J-3620 Searches of Inmates.